

§ 3.2-4115. Issuance of registrations; exemption

A. The Commissioner shall establish a registration program to allow a person to grow, handle, or process industrial hemp in the Commonwealth.

B. Any person seeking to grow, handle, or process industrial hemp in the Commonwealth shall apply to the Commissioner for a registration on a form provided by the Commissioner. At a minimum, the application shall include:

1. The name and mailing address of the applicant;
2. The legal description and geographic data sufficient for locating (i) the land on which the applicant intends to grow industrial hemp, (ii) the site at which the applicant intends to handle industrial hemp, or (iii) the site at which the applicant intends to process industrial hemp. A registration shall authorize industrial hemp growth, handling, or processing only at the location specified in the registration;
3. A signed statement indicating whether the applicant has ever been convicted of a felony. A person with a prior felony drug conviction within 10 years of applying for a registration under this section shall not be eligible to be registered;
4. Written consent allowing the sheriff's office, police department, or Department of State Police, if a registration is ultimately issued to the applicant, to enter the premises on which the industrial hemp is grown, handled, or processed to conduct physical inspections of the industrial hemp and to ensure compliance with the requirements of this article. No more than two physical inspections shall be conducted under this subdivision per year, unless a valid search warrant for an inspection has been issued by a court of competent jurisdiction;
5. Written consent allowing the Commissioner or his designee to enter the premises on which the industrial hemp is grown, handled, or processed to conduct inspections and sampling of the industrial hemp to ensure compliance with the requirements of this article;
6. A statement of the approximate square footage or acreage of the location he intends to use as a production field, handler's storage site, or process site;
7. Any other information required by the Commissioner; and
8. The payment of a nonrefundable application fee, in an amount set by the Commissioner.

C. Each registration issued pursuant to this section shall be valid for a period of one year from the date of issuance and may be renewed in successive years. Each annual renewal shall require the payment of a registration renewal fee, in an amount set by the Commissioner.

D. All records, data, and information filed in support of a registration application submitted pursuant to this section and all information on a hemp producer license issued by the U.S. Department of Agriculture submitted to the Commissioner pursuant to this section shall be

considered proprietary and excluded from the provisions of the Virginia Freedom of Information Act (§ [2.2-3700](#) et seq.).

E. Notwithstanding the provisions of subsection B, no federally licensed hemp producer shall be required to apply to the Commissioner for a registration to grow industrial hemp in the Commonwealth. Each federally licensed hemp producer shall submit to the Commissioner a copy of his hemp producer license issued by the U.S. Department of Agriculture pursuant to 7 C.F.R. Part 990.

2015, cc. [158](#), [180](#);2018, cc. [689](#), [690](#);2019, cc. [653](#), [654](#);2021, Sp. Sess. I, c. [110](#);2023, cc. [744](#), [794](#).

The chapters of the acts of assembly referenced in the historical citation at the end of this section(s) may not constitute a comprehensive list of such chapters and may exclude chapters whose provisions have expired.